

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**Index #
Date of filing:

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SHANIECE HILTON, R.R.P., an infant by his Mother and
Legal Guardian, PAULETTE HILTON, J.H., an infant by
her Mother and Legal Guardian, PAULETTE HILTON,
M.H., an infant by his Mother and Legal Guardian, ERICA
HINTON, PAULETTE HILTON, individually and ERICA
HINTON, individually,

Plaintiffs designate Kings
County as the place of trialBasis of the venue is the
Locus of Occurrence**SUMMONS**Plaintiff, SHANIECE HILTON
resides at
412 Sutter Avenue, Apt.# 1B
Brooklyn, New York 11212

County of Kings

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE CLIFFORD
SCANLON-Shield # 2893 and JOHN AND JANE DOES-
Police Officers as yet unidentified,

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice
of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive
of the day of service (or within 30 days after the service is complete if this summons is not
personally delivered to you within the State of New York); and in the case of your failure to appear
or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:THE CITY OF NEW YORK
100 Church Street
New York, New York 10007**Plaintiff's attorneys:**RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020DETECTIVE CLIFFORD
SCANLON-Shield # 2893
Tax ID # 961253
c/o New York City Police Department- 71st
Precinct
421 Empire Boulevard
Brooklyn, New York 11225Dated: Brooklyn, New York
June 15, 2023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
 SHANIECE HILTON, R.R.P., an infant by his Mother and
 Legal Guardian, PAULETTE HILTON, J.H., an infant by
 her Mother and Legal Guardian, PAULETTE HILTON,
 M.H., an infant by his Mother and Legal Guardian, ERICA
 HINTON, PAULETTE HILTON, individually and ERICA
 HINTON, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE CLIFFORD
 SCANLON-Shield # 2893 and JOHN AND JANE DOES-
 Police Officers as yet unidentified,

Defendants.

-----X

Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
 defendants herein, upon information and belief, respectfully show to this Court, and allege as
 follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
 FALSE ARREST ON BEHALF OF SHANIECE HILTON**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on August 23, 2022 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that

thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff, SHANIECE HILTON, was held on October 17, 2022.

6. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHANIECE HILTON, was lawfully present at or about the premises known as 412 Sutter Avenue, Apartment # 1B, in the County of Kings, City and State of New York.

8. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SHANIECE HILTON, was approached and was falsely arrested by defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

9. That on July 26, 2022, at approximately 4:40 a.m., the plaintiff was taken to the 71st Precinct and was held there for approximately two (2) hours and released without seeing a judge and without being charged with a crime.

10. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

11. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who falsely arrested the plaintiff, SHANIECE HILTON, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

13. That as a result of the aforesaid false arrest and confinement, plaintiff, SHANIECE HILTON, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

14. By the reason of the foregoing, the plaintiff, SHANIECE HILTON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF SHANIECE HILTON**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who violated the civil rights of the plaintiff, SHANIECE HILTON.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, SHANIECE HILTON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF SHANIECE HILTON**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

21. That the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

22. By the reason of the foregoing, the plaintiff, SHANIECE HILTON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLECTION OF
EMOTIONAL DISTRESS ON BEHALF OF SHANIECE HILTON**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That the defendant, THE CITY OF NEW YORK, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

25. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SHANIECE HILTON.

26. That as a result of said intentional and negligent acts, the plaintiff, SHANIECE HILTON, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

27. By reason of the foregoing, the plaintiff, SHANIECE HILTON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF SHANIECE HILTON**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by the plaintiff, SHANIECE HILTON.

30. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

31. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

32. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

33. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

34. As a direct and proximate result of this unlawful conduct, the plaintiff, SHANIECE HILTON, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF SHANIECE HILTON**

35. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "34" inclusive with the same force and effect as if more fully set forth at length herein.

36. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

37. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

38. By the reason of the foregoing, the plaintiff, SHANIECE HILTON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF R.R.P., AN INFANT BY HIS
MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

39. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "38" inclusive with the same force and effect as if more fully set forth at length herein.

40. That prior hereto on August 23, 2022 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

41. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the infant plaintiff, R.R.P and the plaintiff, PAULETTE HILTON, were held on October 17, 2022.

42. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, R.R.P., was lawfully present at or about the premises known as 412 Sutter Avenue, Apartment # 1B, in the County of Kings, City and State of New York.

43. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, R.R.P., was approached and was falsely arrested by defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

44. That on July 26, 2022, at approximately 4:40 a.m., the plaintiff was taken to the 71st Precinct and was held there for approximately two (2) hours and released without seeing a judge and without being charged with a crime.

45. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

46. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who falsely arrested the infant plaintiff, R.R.P., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

47. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

48. That as a result of the aforesaid false arrest and confinement, infant plaintiff, R.R.P., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

49. By the reason of the foregoing, the infant plaintiff, R.R.P., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF R.R.P., AN INFANT BY
HIS MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

50. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "49" inclusive with the same force and effect as if more fully set forth at length herein.

51. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who violated the civil rights of the infant plaintiff, R.R.P.

52. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

53. By the reason of the foregoing, the infant plaintiff, R.R.P., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF R.R.P., AN INFANT BY HIS
MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

54. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "53" inclusive with the same force and effect as if more fully set forth at length herein.

55. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the infant plaintiff, R.R.P.

56. That the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the infant plaintiff, R.R.P. against his will and said confinement was not privileged.

57. By the reason of the foregoing, the infant plaintiff, R.R.P., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF R.R.P., AN INFANT
BY HIS MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

58. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "57" inclusive with the same force and effect as if more fully set forth at length herein.

59. That the defendant, THE CITY OF NEW YORK, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

60. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, R.R.P.

61. That as a result of said intentional and negligent acts, the infant plaintiff, R.R.P., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

62. By reason of the foregoing, the infant plaintiff, R.R.P., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF R.R.P., AN INFANT BY
HIS MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

63. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "62" inclusive with the same force and effect as if more fully set forth at length herein.

64. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by the infant plaintiff, R.R.P.

65. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

66. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

67. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

68. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

69. As a direct and proximate result of this unlawful conduct, the infant plaintiff, R.R.P., sustained the damages hereinbefore alleged.

AS AND FOR A TWELFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES ON BEHALF OF R.R.P., AN INFANT BY HIS MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON

70. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "69" inclusive with the same force and effect as if more fully set forth at length herein.

71. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

72. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

73. By the reason of the foregoing, the infant plaintiff, R.R.P., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF J.H., AN INFANT BY HER
MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

74. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.

75. That prior hereto on August 23, 2022 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

76. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the infant plaintiff, J.H., and the plaintiff, PAULETTE HILTON, were held on October 17, 2022.

77. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, R.R.P., was lawfully present at or about the premises known as 412 Sutter Avenue, Apartment # 1B, in the County of Kings, City and State of New York.

78. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, J.H., was approached and was falsely arrested by defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

79. That on July 26, 2022, at approximately 4:40 a.m., the plaintiff was taken to the 71st Precinct and was held there for approximately two (2) hours and released without seeing a judge and without being charged with a crime.

80. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

81. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief the defendants, DETECTIVE CLIFFORD SCANLON-Shield #2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who falsely arrested the infant plaintiff, J.H., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

82. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

83. That as a result of the aforesaid false arrest and confinement, infant plaintiff, J.H., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

84. By the reason of the foregoing, the infant plaintiff, J.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF J.H., AN INFANT BY
HIS MOTHER AND LEGAL GUARDIAN , PAULETTE HILTON**

85. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "84" inclusive with the same force and effect as if more fully set forth at length herein.

86. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who violated the civil rights of the infant plaintiff, J.H.

87. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

88. By the reason of the foregoing, the infant plaintiff, J.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF J.H., AN INFANT BY HIS
MOTHER AND LEGAL GUARDIAN , PAULETTE HILTON**

89. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "88" inclusive with the same force and effect as if more fully set forth at length herein.

90. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, DETECTIVE CLIFFORD SCANLON-Shield #2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the

infant plaintiff, J.H.

91. That the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the infant plaintiff, J.H., against her will and said confinement was not privileged.

92. By the reason of the foregoing, the infant plaintiff, J.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF J.H., AN INFANT
BY HIS MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

93. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "92" inclusive with the same force and effect as if more fully set forth at length herein.

94. That the defendant, THE CITY OF NEW YORK, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

95. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, J.H.

96. That as a result of said intentional and negligent acts, the infant plaintiff, J.H., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

97. By reason of the foregoing, the infant plaintiff, J.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF R.R.P., AN INFANT BY HIS
MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

98. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "97" inclusive with the same force and effect as if more fully set forth at length herein.

99. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by the infant plaintiff, J.H..

100. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

101. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

102. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

103. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

104. As a direct and proximate result of this unlawful conduct, the infant plaintiff, J.H., sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION FOR PUNITIVE
DAMAGES ON BEHALF OF J.H., AN INFANT BY HIS
MOTHER AND LEGAL GUARDIAN, PAULETTE HILTON**

105. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "104" inclusive with the same force and effect as if more fully set forth at length herein.

106. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

107. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

108. By the reason of the foregoing, the infant plaintiff, J.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF M.H., AN INFANT BY HIS
MOTHER AND LEGAL GUARDIAN, ERICA HINTON**

109. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "108" inclusive with the same force and effect as if more fully set forth at length herein.

110. That prior hereto on August 23, 2022 and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that

thereafter, and within the time provided by law, this action was commenced.

111. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the infant plaintiff, M.H., and the plaintiff, ERICA HINTON, were held on February 6, 2023.

112. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, M.H., was lawfully present at or about the premises known as 412 Sutter Avenue, Apartment # 1B, in the County of Kings, City and State of New York.

113. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, M.H., was approached and was falsely arrested by defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

114. That on July 26, 2022, at approximately 4:40 a.m., the plaintiff was taken to the 71st Precinct and was held there for approximately two (2) hours and released without seeing a judge and without being charged with a crime.

115. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

116. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who falsely arrested the infant plaintiff, M.H., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

117. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

118. That as a result of the aforesaid false arrest and confinement, infant plaintiff, M.H., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

119. By the reason of the foregoing, the, infant plaintiff, M.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTIETH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF M.H., AN INFANT
BY HIS MOTHER AND LEGAL GUARDIAN, ERICA HINTON**

120. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "119" inclusive with the same force and effect as if more fully set forth at length herein.

121. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, who violated the civil rights of the infant plaintiff, M.H.

122. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

123. By the reason of the foregoing, the infant plaintiff, M.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF M.H., AN INFANT BY
HIS MOTHER AND LEGAL GUARDIAN, ERICA HINTON**

124. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "123" inclusive with the same force and effect as if more fully set forth at

length herein.

125. That on July 26, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, DETECTIVE CLIFFORD SCANLON-Shield #2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the infant plaintiff, M.H.

126. That the defendants, DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the infant plaintiff, M.H., against his will and said confinement was not privileged.

127. By the reason of the foregoing, the infant plaintiff, M.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-SECOND CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF M.H., AN INFANT
BY HIS MOTHER AND LEGAL GUARDIAN, ERICA HINTON**

128. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "127" inclusive with the same force and effect as if more fully set forth at length herein.

129. That the defendant, THE CITY OF NEW YORK, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

130. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, M.H.

131. That as a result of said intentional and negligent acts, the infant plaintiff, M.H., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

132. By reason of the foregoing, the infant plaintiff, M.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF M.H., AN INFANT BY
HIS MOTHER AND LEGAL GUARDIAN, ERICA HINTON**

133. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "132" inclusive with the same force and effect as if more fully set forth at length herein.

134. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by the infant plaintiff, M.H.

135. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

136. The defendant, THE CITY OF NEW YORK, through its police department, has de facto quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

137. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here

and has failed to change its policies, practices and customs to stop this behavior.

138. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

139. As a direct and proximate result of this unlawful conduct, the infant plaintiff, M.H., sustained the damages hereinbefore alleged.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF M.H., AN INFANT
BY HIS MOTHER AND LEGAL GUARDIAN, ERICA HINTON**

140. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "139" inclusive with the same force and effect as if more fully set forth at length herein.

141. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

142. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to DETECTIVE CLIFFORD SCANLON-Shield # 2893 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

143. By the reason of the foregoing, the infant plaintiff, M.H., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF PAULETTE HILTON,
AS MOTHER AND LEGAL GUARDIAN OF INFANT, R.R.P.**

144. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "143" inclusive with the same force and effect as if more fully set forth at length herein.

145. That at all times hereinafter mentioned, the plaintiff, PAULETTE HILTON, was the lawful Mother and Natural Guardian of the infant plaintiff, R.R.P., and as such said plaintiff, PAULETTE HILTON, was entitled to the society and services of said infant plaintiff, R.R.P.

146. By reason of the afore-described negligence of defendants, the plaintiff, PAULETTE HILTON, was deprived of the society and services of the infant plaintiff, R.R.P., and shall forever be deprived of said society and services.

147. As a result of herein above, plaintiff, PAULETTE HILTON, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, R.R.P.

148. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, PAULETTE HILTON, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF PAULETTE HILTON,
AS MOTHER AND LEGAL GUARDIAN OF INFANT, J.H.**

149. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "148" inclusive with the same force and effect as if more fully set forth at length herein.

150. That at all times hereinafter mentioned, the plaintiff, PAULETTE HILTON, was the lawful Mother and Natural Guardian of the infant plaintiff, J.H., and as such said plaintiff, PAULETTE HILTON, was entitled to the society and services of said infant plaintiff, J.H.

151. By reason of the afore-described negligence of defendants, the plaintiff, PAULETTE HILTON, was deprived of the society and services of the infant plaintiff, J.H., and shall forever be deprived of said society and services.

152. As a result of herein above, plaintiff, PAULETTE HILTON, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, J.H.

153. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, PAULETTE HILTON, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION FOR
LOSS OF SERVICES ON BEHALF OF ERICA HINTON,
AS MOTHER AND LEGAL GUARDIAN OF INFANT, M.H.**

154. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "153" inclusive with the same force and effect as if more fully set forth at length herein.

155. That at all times hereinafter mentioned, the plaintiff, ERICA HINTON, was the lawful Mother and Natural Guardian of the infant plaintiff, M.H., and as such said plaintiff, ERICA HINTON, was entitled to the society and services of said infant plaintiff, M.H.

156. By reason of the afore-described negligence of defendants, the plaintiff, ERICA HINTON, was deprived of the society and services of the infant plaintiff, M.H., and shall forever be deprived of said society and services.

157. As a result of herein above, plaintiff, ERICA HINTON, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, M.H.

158. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, ERICA HINTON, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff, SHANIECE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First**

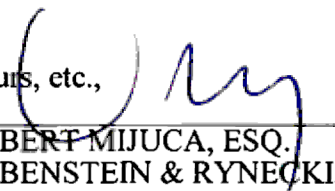
Cause of Action; plaintiff, SHANIECE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, SHANIECE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, SHANIECE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, SHANIECE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, SHANIECE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, R.R.P., an infant his Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, R.R.P., an infant his Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, R.R.P., an infant his Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, R.R.P., an infant his Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, R.R.P., an infant his Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, R.R.P., an infant his Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, J.H., an infant her Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of

all lower Courts on the **Thirteenth** Cause of Action; plaintiff, J.H., an infant her Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, J.H., an infant her Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action; plaintiff, J.H., an infant her Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, J.H., an infant her Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; plaintiff, J.H., an infant her Mother and Legal Guardian, PAULETTE HILTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighteenth** Cause of Action; plaintiff, M.H., an infant her Mother and Legal Guardian, ERICA HINTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Nineteenth** Cause of Action; plaintiff, M.H., an infant her Mother and Legal Guardian, ERICA HINTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twentieth** Cause of Action; plaintiff, plaintiff, M.H., an infant her Mother and Legal Guardian, ERICA HINTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-First** Cause of Action; plaintiff, M.H., an infant her Mother and Legal Guardian, ERICA HINTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Second** Cause of Action; plaintiff, M.H., an infant her Mother and Legal Guardian, ERICA HINTON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Third** Cause of Action; plaintiff, M.H., an infant her Mother and Legal Guardian, ERICA HINTON, demands judgment both compensatory and exemplary in an

amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Fourth** Cause of Action; plaintiff, PAULETTE HILTON, as Mother and Legal Guardian of infant R.R.P., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Fifth** Cause of Action; plaintiff, PAULETTE HILTON, as Mother and Legal Guardian of infant J.H., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Sixth** Cause of Action; plaintiff, ERICA HINTON, as Mother and Legal Guardian of infant M.H., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 15, 2023

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 22SH07-26

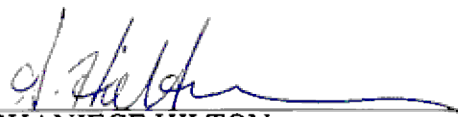
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

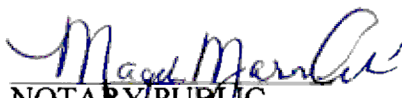
) SS:

COUNTY OF KINGS)

SHANIECE HILTON, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


SHANIECE HILTON

Sworn to before me this 20th
day of June 2023


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 21

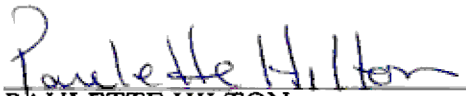
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

PAULETTE HILTON, being duly sworn, deposes and says, that deponent is the Mother and Legal Guardian of infant plaintiff, R.R.P., in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


PAULETTE HILTON

Sworn to before me this 20th
day of June 2023


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 27

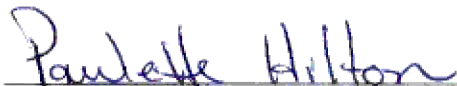
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

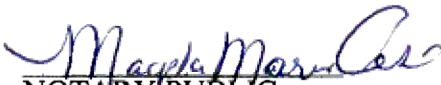
) SS:

COUNTY OF KINGS)

PAULETTE HILTON, being duly sworn, deposes and says, that deponent is the Mother and Legal Guardian of infant plaintiff, J.H., in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


PAULETTE HILTON

Sworn to before me this 20th
day of June 2023


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2027